

48. [εἰσὶ] δ' ἀποδέκται δέκα, κεκληρωμένοι κατὰ φυλάς· οὔτοι δὲ παραλαβόντες τὰ γραμματεῖα, ἀπαλείφουσι τὰ καταβαλλόμενα χρήματα ἐναντίον τ[ῆς βουλῆς] ἐν τῷ βουλευτηρίῳ, καὶ πάλιν ἀποδιδόασιν τὰ γραμματεῖα τ[ῷ δη]μοσίῳ· κἂν τις ἐλλίπη καταβολήν, ἐνταῦθ' ἐγγέγραπται, καὶ διπλά[σιον ἀ]νάγκη τὸ [ἐλλ]ειφθὲν καταβάλλειν ἢ δεδέσθαι, καὶ ταῦτα εἰσπράτ[τειν ἢ 2 βο]υλὴ καὶ δῆσαι [κυ]ρία κατὰ τοὺς νόμους ἐστίν. τῇ μὲν οὖν προτεραιᾷ δέχονται τὰς [καταβολὰς] καὶ μερίζουσι ταῖς ἀρχαῖς, τῇ

XLVIII 4 ἀποδιδόαι H-L.

5 ΕΝΤΕΥΘΕΝΓΕ, ἐντεῦθεν γέγραπται K<sup>1</sup>: ἐνταῦθ' ἐγγέγραπται Herwerden, Kontos, Gertz (edd.). διπλά[σιον] B<sup>2-4</sup>, K-W<sup>3</sup>, K<sup>4</sup>, Th; διπλ[οῦν] olim van Leeuwen (K-W<sup>1,2</sup>, H-L, K<sup>3</sup>, B<sup>1</sup>, S<sup>1</sup>). 8 post τὰς legit τ vel κ Blass, unde καταβολὰς Kaibel 213 (B<sup>3,4</sup>, Th); τ vel π Wilcken, unde idem Kaibel π[άσα]ς, 'quod potest verum esse' K<sup>4</sup>; τὰ χρ[ήματα] olim K<sup>1</sup>, B<sup>2</sup>, S<sup>1</sup>.

TESTIMONIA. XLVIII §§ 1, 2 \*Harp. ἀποδέκται:...'Αρ. δ' ἐν τῇ 'Αθ. πολ. δεδήλωκεν ὡς δέκα τε ἦσαν (Epit.; εἴησαν codd.) καὶ ὡς "παραλαβόντες—χρήματα" τῆς βουλῆς ἐναντίον "ἐν τῷ—δημοσίῳ." καὶ ἀπλῶς ἂ πράττουσι διασαφεῖ. Bekk. An. 198, 1 (Etym. M. 124, 41; Zonaras 234; Bekk. An. 427, 13): ἀρχοντες κληρωτοί, δέκα τὸν ἀριθμὸν κατὰ φυλὴν εἰσιν, οἵτινες παρελάμβανον καὶ ἀπεδέχοντο τὰ γραμματεῖα τῶν ὀφειλόντων τῷ δημοσίῳ...εἰτα ἐξήταζον τὰ τε ὀφειδόμενα καὶ τὰ ἀποδιδόμενα χρήματα σὺν τῇ βουλῇ καὶ ἡμέρισιν εἰς ἃ χρῆ ἀναλίσκεν (Frag. 400<sup>2</sup>, 440<sup>3</sup>). Schol. in Aeschin. 3 § 25 ἀποδέκται ἦσαν οἱ δεχόμενοι τὰ χρήματα τῶν καταβολῶν κτλ.

annulling laws and decrees (in Lys. i § 48, and Andoc. *De Myst.* 76), and to cancelling debts (in Dem. 25 § 70, ἐξαλήπται τὸ ὄφλημα, and CIA i 32, 10, ἀποδόντων τὰ χρήματα καὶ ἐξαλειφόντων). Cf. CIA iv fasc. 2, 53 a, ἐξαλειψάτω contrasted with ἀντεγγραφάτω.

XLVIII § 1. ἀποδέκται] 'general receivers.' These officials were instituted by Cleisthenes to take over most of the duties previously performed by the κωλακρέται (Androtion ap. Harpocr. s.v.). They are mentioned in Dem. c. *Timocr.* §§ 162, 197, Aesch. c. *Ctes.* 25, *Pol.* 1321 b 31, ἄλλη δ' ἀρχὴ πρὸς τῇν αἰ πρόσδοι τῶν κοινῶν ἀναφέρονται, πᾶρ' ὧν φυλατῶντων μερίζονται (cf. l. 8 μερίζουσι) πρὸς ἐκάστην διοίκησιν· καλοῦσι δ' ἀποδέκτας τοῦτους καὶ ταμίαις, in an inser. of 418/7 B.C. quoted in note on § 4, ὁ βασιλεὺς. See Boeckh, II iv; Schömann, p. 417; Gilbert, i 264<sup>2</sup>; and *Dict. Ant.* s.v.; also Panske, *de Magistratibus Atticis*, i 46—60.

τὰ καταβαλλόμενα χρήματα] CIA ii 807 col. b 15, τοῦτο κατεβάλομεν ἀποδέκταις in B.C. 330/29; b 30, in B.C. 329/8; 803 col. a 93 and 138, b εἰς βουλευτήριον καταβάλομεν, B.C. 360 and 363.

ἐλλίπη καταβολήν] 'fail to pay an instalment.' Polyb. iv 60, 2, ἔλλειπειναι τινὰ τῶν ὀψωνίων.

ἐνταῦθ' ἐγγέγραπται] 'there stands his

name already entered' (while the rest are wiped out); this seems preferable to ἐντεῦθεν γέγραπται, 'a note is made of it from this record' (K.). ἐντεῦθεν ἐγγέγραπται is preferred by Foucart: 'à partir de ce moment il est inscrit comme débiteur public' (*Journal de Philologie*, xix, 1895, 24). ἐγγράφειν is specially applied to entering the names of state-debtors, Dem. 25 § 70 (cf. L and S, II 3).

διπλάσιον—καταβάλλειν] διπλοῦν is more frequent, but διπλάσιον is found in Andoc. *De Myst.* 73 (Kaibel, 213).

δῆσαι κυρία] In Dem. c. *Timocr.* 98 the speaker argues that, owing to the law proposed by Timocrates, allowing debtors to the treasury to find securities instead of making prompt payments, the βουλὴ (as well as the δικαστήρια) ceases to be κυρία δῆσαι. Cf. 45 § 1.

§ 2. μερίζουσι] CIA ii 38, 18 (not later than Ol. 100 = B.C. 380-), μερίσαι δὲ τὸ ἀργύριον—τοὺς ἀποδέκτας ἐκ τῶν καταβαλλομένων χρημάτων ἐπειδὴ τὰ ἐκ τῶν νόμων μερίσωσι. Ib. 181, τοὺς δὲ ἀποδέκτας μερίσαι τῷ ἀρκε]θεώρῳ ὅς ἂν αἰεὶ ἀρκε]θ[ωρήσῃ] τὸ ἀργύριον. 115 b 44, [τὸ ἀργ]ύριον τοῦτο μερίξεν τ[ὸς ἀποδ]έκτας τῷ ταμίᾳ τοῦ δήμ[ου εἰς τὸν] ἐνιαυτὸν ἕκαστον. 834 b (B.C. 329/8) col. ii 3, τὸ μερισθὲν εἰς τὰ ἔργα παρ' ἀποδεκτῶν ἐπιστάταις Ἐλευσινοθεν. *Pol.* 1321 b 31, quoted above. Cf. Boeckh, i 210 n. a, Fränkel.

δ' ὑστεραίᾳ τὸν τε μερισμὸν εἰσ[φέρου]σι γράφοντες ἐν σανίδι καὶ  
 10 καταλέγουσιν ἐν τῷ βουλευτηρίῳ, καὶ προ[τιθ]έασιν ἐν τῇ βουλῇ,  
 εἴ τις τινα οἶδεν ἀδικοῦντα περὶ τὸν μερισμὸν ἢ ἄρ[χοντα] ἢ  
 ιδιώτην, καὶ γνώμας ἐπιψηφίζουσιν, εἴαν τις τι δοκῇ ἀδικεῖν.

κληροῦσι δὲ καὶ λογιστάς ἐξ αὐτῶν οἱ βουλευταὶ δέκα τοὺς 3  
 λογιουμένους τ[αῖς ἀρ]χαῖς κατὰ τὴν πρυτανείαν ἐκάστην. κλη- 4  
 15 ροῦσι δὲ καὶ εὐθύνοὺς ἓνα τῆς φυλῆς ἐκάστης, καὶ παρέδρους

9 εἰσ[φέρου]σι van Leeuwen (edd.); εἰσ[άγου]σι olim K.  
 conieci (edd.). 12 ΔΟΚΗΙ: δόξη B<sup>1</sup> coll. 46 § 2.

10 προτιθέασιν olim

TESTIMONIA. § 3 \*Harp. λογισταὶ καὶ λογιστήρια: ...εἰσὶ δὲ τὸν ἀριθμὸν δέκα  
 (ἐκάστης φυλῆς εἰς Schol. in Aeschin. 3 § 15; cf. ib. § 9), οἱ τὰς εὐθύνas τῶν διψηφμένων  
 ἐκλογίζονται ἐν ἡμέραις ᾧ, ὅταν τὰς ἀρχὰς ἀποθῶνται οἱ ἀρχοντες... διελέκται περὶ τούτων  
 'Αρ. ἐν τῇ 'Αθ. πολ., ἐνθα δέκνυται ὅτι διαφέρουσι τῶν εὐθύνων. Pollux viii 99: καὶ  
 τούτους ἡ βουλὴ κληροῖ κατ' ἀρχὴν ὡς παρακολουθεῖν τοῖς διοικοῦσιν.

§ 4 \*Harp. εὐθυνοί:—δέκα τὸν ἀριθμὸν ἄνδρες ἦσαν, παρ' οἷς ἐδίδοντο οἱ πρεσβέ-  
 σαντες ἢ ἀρξάντες ἢ διοικήσαντές τι τῶν δημοσίων τὰς εὐθύνas. διελέκται περὶ αὐτῶν  
 'Αρ. ἐν τῇ 'Αθ. πολ. Phot. εὐθυνος: ἀρχὴ ἦν τις. ἐξ ἐκάστης δὲ φυλῆς ἓνα κληροῦσι  
 τούτῳ δὲ δύο παρέδρους (Frag. 405<sup>2</sup>, 445<sup>3</sup>).

μερισμὸν] 'the apportionment'; rarely  
 found in this sense. For exx. see Ditten-  
 berger, no. 344, 18, 21, 23.

σαν[ίδι] rare in sing. Dem. 25 § 70  
 (of the record of a debt) ἡ σανὶς ἢ παρὰ  
 τῇ θεῷ κειμένη.

προτιθέασιν] 44 § 3.

§ 3. λογιστάς] These are identical in  
 name and number with those mentioned  
 in 54 § 2. Both bodies are appointed by  
 lot; but the λογισταὶ in the text are a  
 committee of the Council. They are  
 therefore to be distinguished from the  
 board of λογισταί, who, with their συν-  
 ἡγοροί, audit the accounts of all officials at  
 the close of their term of office. The  
 officials appointed by lot are enumerated  
 in c. 50—64; c. 54, in § 2 of which the  
 λογισταὶ are named, is introduced with  
 the words: κληροῦσι δὲ καὶ τὰςδε τὰς  
 ἀρχὰς. This implies that the officials in  
 question have not been mentioned before.  
 The existence of a committee of the  
 Council, side by side with a board of the  
 same name, appears to be supported by  
 the analogy of the committee entitled οἱ  
 ἐπὶ τὸ θεωρικὸν ἡρμένιοι (CIA ii 739),  
 and the βουλευτὴς described as ἐπὶ τὸ  
 θεωρικὸν (CIA ii 114 c 5), existing by the  
 side of the official board οἱ ἐπὶ τῷ θεωρικῷ.  
 The double sense of λογισταὶ is con-  
 firmed by Pollux viii 99, λογισταὶ δύο  
 ἦσαν ὁ μὲν τῆς βουλῆς ὁ δὲ τῆς διοικήσεως,  
 καὶ τούτους ἡ βουλὴ κληροῖ κατ' ἀρχὴν  
 ὡς παρακολουθεῖν τοῖς διοικοῦσιν (Lipsius,  
*Leipzig Verhandl.* pp. 64—67). λογισταὶ  
 δύο is the reading in Bekker's best MS;

the rest have δύο δ', making it refer to the  
 ἀντιγραφεὺς (see 54 § 3).

The λογισταὶ of the text are also dis-  
 tinguished from those of c. 54 by Gilbert  
 (i 248, 250<sup>2</sup>) and by Busolt. But they  
 are identified by Thumser, p. 652 n. 4.  
 If they are identical, the mention of the  
 same officials in two passages implies a  
 certain carelessness in the composition of  
 the treatise.

τοὺς λογιουμένους—πρυτανείαν ἐκά-  
 στην] Lys. 30 § 5, οἱ μὲν ἄλλοι τῆς αὐτῶν  
 ἀρχῆς κατὰ πρυτανείαν λόγον ἀποφέρουσι  
 (ἀναφέρουσι MSS). The text shews that  
 this passage was rightly understood by  
 Schömann, as referring to the accounts  
 which had to be presented to the λογισ-  
 ταί, and not to the ἐπιχειροτονία τῶν  
 ἀρχῶν (43 § 4). 'ἀναφέρειν nihil aliud  
 esse potest quam quod alibi dicitur λόγον  
 ἐγγράφειν, hoc est perscriptum rationem  
 ad eos, quibus ea examinanda est, deferre,  
 quemadmodum ipsum Lysiam mox hoc  
 verbo ἐγγράφειν uti videmus, et Aeschines  
 quoque ἀποφέρειν λόγον πρὸς τοὺς λογισ-  
 τὰς dicit, in Ctesiph. § 22, eodem sensu  
 quo paullo ante, § 20, λόγον ἐγγράφειν  
 πρὸς τοὺς λογιστάς dixerat' (Orusc. Acad.  
 i 295).

§ 4. εὐθύνοὺς] 'Examiners of accounts.'  
 Harp. in *Testim.* At the audit of ac-  
 counts by the board of λογισταί, the εὐ-  
 θυνοὶ were entitled to bring charges  
 against the ὑπεύθυνος. The assessors of  
 the εὐθύνas are mentioned in Andoc. *De*  
*Myst.* 78, ὅσων εὐθύναι τινὲς εἰσι κατε-  
 γνωσμένα ἐν τοῖς λογιστηρίοις ὑπὸ τῶν

δύο ἐκάστῳ τῶν εὐθύνων, οἷς ἀναγκαῖόν ἐστι ταῖς ἀ[γορ]αῖς κατὰ τὸν ἐπώνυμον τὸν τῆς φυλῆς ἐκάστης καθῆσθαι· κἄν τις βούληται τινι τῶν τὰς εὐθύνας ἐν τῷ δικαστηρίῳ δεδωκότων, ἐντὸς τριῶν ἡ[μερῶν ἀφ'] ἧς ἔδωκε τὰς εὐθύνας εὐθυναν, ἂν τ' ἰδίαν ἂν τε δ[η]μο[σί]α[ν] ἐμβαλέσθαι, γράψας εἰς πινάκιον λελευκωμένον τοῦ- 20 νομα τό [θ'] αὐτοῦ καὶ τὸ τοῦ φεύγοντος, καὶ τὸ ἀδίκημ' ὃ τι ἂν ἐγκαλῇ, καὶ τίμημα ἐ[πι]γραφάμενος ὃ τι ἂν αὐτῷ δοκῇ, δίδωσιν 5 τῷ εὐθύνῳ. ὁ δὲ λαβὼν τοῦτο καὶ ἀν[ακρίνα]ς, εἰ μὲν καταγνῶ,

16 ταῖς ἀ[γορ]αῖς κ (K-W<sup>1,2</sup>), 'ante ais fortasse λ; sed ρ quoque nonnumquam habet ligaturam, unde ἀγοραῖς conieci; fortasse autem longius quid desideratur' K<sup>4</sup>: ταῖς εὐθύναις H-L et B<sup>1</sup> invita papyro; ταῖς α. . . . ais B<sup>2-4</sup>, K-W<sup>3</sup>, K<sup>4</sup>, Th. κατὰ (κ, β, K-W<sup>3</sup>, Th): παρὰ H-L, K-W<sup>1,2</sup>. 17 ἐκάστης κ, K-W, B<sup>2-4</sup>, Th; ἕκαστον H-L; ἐκάστο[ι]ς B<sup>1</sup>, post τ prior tantum pars litterae η vel ο dispici potest. 18 τῷ λογισ-τηρίῳ Photiades. ΕΝΤΟΣ Γ (sc. ἐντὸς τριῶν) κ, K-W, β, Th; 'potest etiam λ legi' (non Γ), K<sup>4</sup>, quod praefert Lipsius. 19 ἂν τ' ἰδίαν ἂν τε δημοσίαν optime Gertz (edd., ἐάν τ'—ἐάν τ'—H-L). 20 δημοσίαν Gertz, K-W. 21 τὸ αὐτοῦ B<sup>1</sup>, Richards, H-L, K<sup>3</sup>; τό τε αὐτοῦ K-W; τό θ' αὐτοῦ B<sup>2-4</sup>, K<sup>4</sup>, Th. 22 ἐπιγραφάμενος Wyse, Lipsius (K<sup>3</sup>); ἐπιγραφάμενος H-L, β, K<sup>4</sup>, Th; ὑπογραφάμενος K-W, sed υ valde incertum putat K. 23 ἀ[νακρίνας] Wayte, Lipsius, B<sup>4</sup>, Th: ἀ[ναγνούς] B<sup>1-3</sup>, K-W, H-L, K<sup>3,4</sup>, quamquam vel propter proximum καταγνῶ suspectum; dubitat Kaibel 214; ἀ[κούσας] K<sup>1</sup>. μὲν secl. K-W, B.

εὐθύνων καὶ (ἡ MSS) τῶν παρέδρων, and in CIA 809 δ, ὀφειλέτω ὁ μὴ ποιήσας μυριάς δραχμὰς ἱερὰς τῇ Ἀθηνᾷ καὶ ὁ εὐθυνος καὶ οἱ παρέδρου ἐπ' ἀναγκῆς αὐτῶν καταγινωσκόντων ἢ αὐτοὶ ὀφειλόντων. In CIA ii 571 (B.C. 368), the εὐθυνος (of a deme) is mentioned together with his πατέδρου; and *ib.* 578, the εὐθυνος (of another deme) with the λογιστῆς and the συνήγοροι. Cf. Plat. *Leg.* 761 E, ἀνυπεύθυνον οὐδένα δικάζειν καὶ ἄρχειν.

The text shews that, even after the audit had been passed, officials were liable to be prosecuted by private persons in respect to the manner in which they had discharged their duties. Cf. Lipsius in *Leipzig Verhandl.* (1891) 66, 67; also Wilamowitz, ii 231 ff., on λόγος and εὐθυνα.

ἀναγκαῖόν ἐστι ἀνάγκη is avoided here, and in 53 § 5, *propter hiatus* (Kaibel, 10, 15).

ταῖς ἀγοραῖς] hitherto understood to mean 'at the regular meetings held by the several tribes for the transaction of tribal business.' CIA ii 555, τῇ κυρίᾳ ἀγορᾷ κρύβδην ψηφισαμένων τῶν φυλετῶν ἐν τῇ ἀκροπόλει, 554 δ, ἐν τῇ ἀγορᾷ (of the tribe Pandionis), 564, ὅταν ἀγορὰν ποιῶν (Gilbert, i 224 n. 4). Wilamowitz, however (ii 235 n. 15), prefers making ἀγοραῖς 'the ordinary market-hours.' If action had to be taken 'within three days,' this could not admit of

waiting for the next 'meeting for the transaction of tribal business.'

κατὰ τὸν ἐπώνυμον τὸν τῆς φυλῆς ἐκάστης] 'opposite the statue of the eponymous hero of each of the several tribes.' The statues of the ten Attic heroes from whom the ten tribes derived their names (21 § 6) were a little beyond the θόλος and the βουλευτήριον (Paus. i 5, 1), in a conspicuous position on the northern slope of the Areopagus. Cf. Judeich, *Topogr. von Athen*, p. 310.

ἂν τ'... ἂν τε] Kühner, § 541. ἐμβαλέσθαι] of formally 'putting in' a document, Dem. p. 1014, 25, ἐμβέβλη- μένος οὐδεμῶν μαρτυρίαν, 1104, 6; 1203, 26, ἐμβαλομένου γὰρ ἐμοῦ τὸν ὅρκον εἰς τὸν ἐχίνον.

τίμημα ἐπιγραφάμενος] Arist. *Plut.* 480, τί δῆτά σοι τίμημ' ἐπεγράψω τῇ δίκῃ; Lex ap. Aeschin. i § 16, τίμημα ἐπιγραφάμενος. Dem. 29 § 8, τῶν ἐπιγεγραμμένων ('the damages claimed') ἐτίμησαν. Pollux (viii 47, of φάσις), ἐδίδοσαν ἐν γραμματέω γράψαντες τὴν φάσιν τά θ' ἐαυτῶν καὶ τὸ τοῦ κρινόμενου ὄνομα προσγράφαντες καὶ τίμημα ἐπιγραφάμενοι.

§ 5. ἀνακρίνας—καταγνῶ] The examination of the accounts by the λογισταὶ and συνήγοροι is described as an ἀνάκρισις. Ar. ap. Lex. *Rhet. Cant.* s.v. λογισταί, (συνήγοροι) συνανακρίνουσι τούτους (sc. τοὺς λογισταῖς). For the general use of ἀνα-

παράδιδωσιν τὰ μὲν ἴδια τοῖς δικασταῖς τοῖς κατὰ δῆμ[ους τοῖς] τὴν  
 25 φυλὴν ταύτην εἰσάγουσιν, τὰ δὲ δημόσια τοῖς θεσμοθέτα[ις ἀ]να-  
 γράφει. οἱ δὲ θεσμοθέται, εἰς παραλάβωσιν, πάλιν εἰσάγουσιν  
 [ταύτην τὴν] εὐθυναν εἰς τὸ δικαστήριον, καὶ ὃ τι ἂν γνῶσιν οἱ  
 : δικαστ[αί, τοῦτο κύ]ριον ἐστίν.

49. δοκιμάζει δὲ καὶ τοὺς ἵππους ἢ βουλή, καὶ μὲν τις καλ[ὸν]  
 ἵππον ἔχ[ων] κακῶς δοκῇ τρέφειν, ζημιοὶ τῷ σίτῳ, τοῖς δὲ μὴ  
 δυναμ[ένους ἀ]κολ[ουθεῖν] ἢ μὴ ἔθελουσι μένειν ἀναγ[ώγοις] οὐσι,

24 legendum fortasse τὰ μὲν ἴδια παραδίδωσιν, alioqui in altero membro verbum  
 languet. [τοῖς] τὴν B, K-W<sup>3</sup>, K<sup>4</sup>, Th; οὐ τὴν olim K (H-L). 25 ΕΙΣΑΓΟΥΣΙΝ K,  
 H-L, B, Th: δικάζουσιν coni. Richards, E S Thompson (K-W). ἀ]ναγράφει K, H-L,  
 spatium ante relicto B<sup>2-4</sup>, Th; [ἀνα]γράφει K<sup>1</sup>, Th; [ἐγ]γράφει Lipsius; [ἐπι]γράφει  
 B<sup>1</sup> (S<sup>1</sup>); [τῆ]μα δ' ὑπο]γράφει K-W<sup>1-2</sup>, sed spatium non sinit; συναναγράφει Wilcken  
 (K-W<sup>3</sup>), 'sed συν non video' K<sup>4</sup>. 26 εἰς; ἐπὶ K, Th; ἐπὶ K, Th; ἐπὶ K, Th; ἐπὶ K, Th; ἐπὶ K, Th;  
 27 [ταύτην τὴν] spatii causa B<sup>2-4</sup>, K<sup>4</sup>, Th: [τὴν] legebatur. 28 τοῦτο κύριον ἐστίν  
 van Leeuwen (edd.).

XLIX 1—2 καλ[ὸν] ἵππον ἔχ[ων] K-W (K<sup>3</sup>, B<sup>1</sup>, Th); καλ[ῶς] ἔχων K<sup>1</sup>; κατὰστασιν  
 Wyse (H-L); καλ[ὸν] [πλούσιος] ὦν B<sup>2</sup>; καλ[ὸν] [δυνατὸς] ὦν B<sup>2-4</sup> ('ante ων, χ vel s vel μ'  
 K<sup>1</sup>). 3 ἀκολουθεῖν Wyse (K<sup>3</sup>, B, K-W<sup>3</sup>, Th); τρέφειν K<sup>1</sup>, τρέχειν Campbell, K-W<sup>1,2</sup>, H-L.

λλ

θέλουσι K, K-W, B, Th. ΔΝΑΓΟΥΣΙ, ἀλλ' ἀνάγουσι B<sup>1-3</sup>, K<sup>4</sup>; ἀνάγουσι K-W<sup>3</sup>, Th; 'an  
 ἀναβαίνουσι?' Th; ἀναγ<ώγοις> οὐσι van Leeuwen (H-L, K<sup>3</sup>, S<sup>1</sup>, B<sup>4</sup>); (post θέλουσιν)  
 σημείον ἐπιβάλλουσι K-W<sup>1,2</sup>.

κρίνω, as applied to the official conducting  
 an ἀνάκρισις, cf. Dem. *Olympt.* 31, ὁ  
 ἄρχων ἀνέκρινε πᾶσιν ἡμῖν τοῖς ἀμφισ-  
 βητούσιν, and Isaeus, *Dicaeog.* 32, ἀνα-  
 κρίναντες ἡμᾶς πολλάκις οἱ δαιτηταί. Cf.  
 56 § 6 (γραφαὶ καὶ δίκαι) ὡς ἀνακρίνας  
 εἰς τὸ δικαστήριον εἰσάγει. The statement  
 that the ἀνάκρισις was also called an  
 ἀνάγνωσις rests on a wrong reading in  
 Dem. 53 § 22. The object of an ἀνάκρισις  
 was to determine by a preliminary exami-  
 nation, εἰ ὅλους εἰσάγειν χρή (Harp. s.v.).

δικασταῖς...κατὰ δῆμους] 16 § 5; 26  
 § 3; 53.

τὴν φυλὴν ταύτην εἰσάγουσιν] 53 § 2,  
 παραδιδάσκει...τοῖς τὴν φυλὴν τοῦ φεύγοντος  
 δικάζουσιν, 58 § 2, τοὺς τὴν φυλὴν δικά-  
 ζοντας, Lys. *Pancl.* 2, τοὺς τῇ Ἱππο-  
 θωνίδει δικάζοντας, and Isaeus frag. 1,  
 ὅτι πρὸς τὴν φυλὴν τοῦ κεκτημένου αἱ πρὸς  
 δούλους λαγχάνονται δίκαι (Meier and  
 Schömann, p. 90 n. Lips.).

ἀναγράφει here 'to report,' lit. 'to  
 hand in a written statement,' as in *Pol.*  
 1321 ὁ 34, ἑτέρα δ' ἀρχή, πρὸς τὴν ἀναγρά-  
 φεσθαι δεῖ τὰ τε ἴδια συμβόλαια καὶ τὰς  
 κρίσεις ἐκ τῶν δικαστηρίων.

Of the other suggestions, ἐγγράφει has  
 been supported by Aeschin. 3 § 20, Lys.  
 30 § 5, Dem. 24 § 199, Arist. *Vesp.* 996  
 (Lipsius); and ἐπιγράφει by the doubtful  
 passage in Aeschin. 1 § 35.

The construction is slightly irregular,  
 as a principal verb is not wanted, παρα-  
 δίδωσιν being the verb to both clauses—  
 μὲν and δέ. The irregularity is removed  
 by striking out μὲν, but this involves a  
 needless hiatus and is not absolutely  
 necessary.

ὃ τι ἂν—κύριον ἐστίν] Cf. c. 45, l. 10.

XLIX § 1. δοκιμάζει—τοὺς ἵππους]  
 Xen. *Oec.* ix 15, ἡ βουλὴ ἵππους καὶ  
 ἵππεας δοκιμάζει, *Hipparch.* i 8, (ἡ πόλις)  
 προσέταξε τῇ βουλῇ συνεπιμελεῖσθαι τοῦ  
 ἵππικου, and iii 9—14, *Anab.* iii 3, 20  
 (not of Athens) ἵπποι καὶ ἵππεῖς ἐδοκι-  
 μάσθησαν. A *patera* from Orvieto, now  
 in the Berlin Museum, represents three  
 horsemen in *chlamys* and *petasus* leading  
 their horses by the bridle past two  
 standing figures who examine them as  
 they pass. A third figure is seated and  
 is entering memoranda on a scroll resting  
 on his knees. In the centre is a ἵππο-  
 τοξότης standing beside his horse. The  
 subject is doubtless a ἵππων δοκιμασία  
 (*Archaeol. Zeitung*, 37, 1880, pl. 15;  
 Duruy, *Hist. d. Grecs*, ii p. 177; Darem-  
 berg and Saglio, s.v. *Dokimasia*, p. 327;  
 Schreiber's *Bilderatlas*, i 40, 7). On the  
 δοκιμασία of the ἵππεῖς and their horses,  
 see Martin, *Les Cavaliers Athéniens*, pp.  
 328—334.

τοῖς μὴ δυναμένοις ἀκολουθεῖν κτλ.]